

An Act

ENROLLED SENATE
BILL NO. 1921

By: Murdock of the Senate

and

Manger of the House

An Act relating to the Oklahoma State Bureau of Investigation; amending 74 O.S. 2021, Section 150.9, as amended by Section 583, Chapter 486, O.S.L. 2025 (74 O.S. Supp. 2025, Section 150.9), which relates to criminal history records; removing obsolete language; providing time frame for completion of certain record checks; amending fee schedule for certain records; updating statutory language; updating statutory reference; and providing an effective date.

SUBJECT: Oklahoma State Bureau of Investigation

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 74 O.S. 2021, Section 150.9, as amended by Section 583, Chapter 486, O.S.L. 2025 (74 O.S. Supp. 2025, Section 150.9), is amended to read as follows:

Section 150.9. A. The Oklahoma State Bureau of Investigation shall procure, file, and maintain criminal history records for each person subject to mandatory reporting as provided by law, including photographs, descriptions, fingerprints, measurements, and other pertinent information relating to such persons. It shall be the duty of law enforcement officers and agencies, sheriffs, police, courts, judicial officials, district attorneys, and the persons in charge of any state correctional facility or institution to furnish criminal history records to the Bureau as required by Section 150.1 et seq. of this title. The Oklahoma State Bureau of Investigation shall cooperate with and assist the sheriffs, chiefs of police, and

other law enforcement officers of the state by maintaining a complete criminal history record on each person subject to mandatory reporting as provided by law, and shall have on file the fingerprint impressions of all such persons together with other pertinent information as may from time to time be received from the law enforcement officers of this and other states or as may be required by law.

B. 1. The Oklahoma State Bureau of Investigation is authorized to conduct and receive results of national criminal history record checks for authorized purposes pursuant to ~~Public Law~~ P.L. No. 92-544, the National Child Protection Act/Volunteers for Children Act (NCPA/VCA) as amended, with or without a Volunteer and Employee Criminal History System (VECHS) waiver program or any other federal authorizing statute. The Oklahoma State Bureau of Investigation shall only release the results of national criminal history record checks to entities authorized to receive the results pursuant to federal law.

2. Any state agency, board, department, or commission or any other person or entity authorized to request a national criminal history record ~~or an analysis of fingerprints~~ check for commercial, licensing, or other purposes, except law enforcement purposes, shall conduct a national criminal history ~~records~~ record check on all persons of the entity authorized to access or review national criminal history records checks information ~~by July 1, 2009, and within sixty (60) days thereafter.~~ National criminal history record checks conducted for access and review purposes shall be completed prior to the individual receiving and reviewing national criminal history record information and may be conducted up to thirty (30) days before the effective date of the entity's authorization to conduct national criminal history record checks.

3. Each agency, person, or entity authorized to request a criminal history record or an analysis of fingerprints shall pay a fee to the Bureau for each criminal history record or fingerprint analysis as follows:

Oklahoma criminal history record only	\$15.00 <u>\$20.00</u> each
Oklahoma criminal history record with fingerprint analysis	\$19.00 <u>\$25.00</u> each

National criminal history record with
fingerprint analysis submitted
electronically

\$41.00 each

National criminal history record with
fingerprint analysis by mail

\$55.00 each

4. For purposes of this section, "a national criminal history record check" means a check of criminal history records entailing the fingerprinting of the individual and submission of the fingerprints to the United States Federal Bureau of Investigation (FBI) for the purpose of obtaining the national criminal history record of the person from the FBI. A national criminal history record check may be obtained only when a check is authorized or required by state or federal law.

Agencies authorized by statute to conduct national criminal history background checks for individuals are eligible to participate in the Federal Rap Back Program administered by the Oklahoma State Bureau of Investigation. The Oklahoma State Bureau of Investigation is authorized to submit fingerprints to the FBI Rap Back System to be retained in the FBI Rap Back System for the purpose of being searched by future submissions to the FBI Rap Back System, including latent fingerprint searches, and to collect all Federal Rap Back Program fees from eligible agencies wishing to participate and remit such fees to the ~~Federal Bureau of Investigation~~ FBI.

5. Unless a national criminal history record is specifically requested, a fingerprint analysis shall be limited to only those records available at the Oklahoma State Bureau of Investigation. Following receipt of the appropriate fee, the Bureau shall provide, as soon as possible, the criminal history record requested; provided, however, it shall be the duty and responsibility of the requesting authority to evaluate the criminal history record as such record may apply to a specific purpose or intent. An individual may submit a certified court record showing that a charge was dismissed or a certified copy of a gubernatorial pardon to the Oklahoma State Bureau of Investigation, and upon verification of that record, the Bureau records shall reflect the dismissal of that charge.

C. The Oklahoma State Bureau of Investigation may maintain an identification file, including fingerprint impressions, on any person under eighteen (18) years of age who is arrested or subject to criminal or juvenile delinquency proceedings, provided all such information shall be confidential and shall only be made available to the Bureau and other law enforcement agencies. Whenever a fingerprint impression or other identification information is submitted to the Bureau on a person under eighteen (18) years of age, the Bureau may retain and file such fingerprint and identification information for identification purposes only. The Bureau shall ensure that the information received and maintained for identification purposes on persons under eighteen (18) years of age shall be handled and processed with great care to keep such information confidential from the general public. The Bureau may receive and maintain the fingerprints and other identification information on any person under eighteen (18) years of age believed to be the subject of a runaway, missing, or abduction investigation, for identification purposes at the request of a parent, guardian, or legal custodian of the person.

D. Any person who knowingly procures, utters, or offers any false, forged, or materially altered criminal history record shall be guilty of a Class D1 felony offense and upon conviction shall be punished by imprisonment as provided for in subsections B through F of Section 20N of Title 21 of the Oklahoma Statutes, or by a fine not to exceed Five Thousand Dollars (\$5,000.00), or by both such ~~fine and imprisonment~~ and fine.

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 17th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 21st day of April, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____